Dedicated to Excellence
Cherry Creek Schools

CORA Disclosure and Best Value Evaluation

RFP 27-007 District Wide Custodial Services

Purpose and Disclosure

This Addendum provides all prospective proposers with the same incumbent contract and pricing records and amends the relative importance of price and non-price factors for the best-value evaluation of custodial service proposals.

The District has received requests under the Colorado Open Records Act (CORA), C.R.S. §§ 24-72-200.1 et seq., for records associated with the existing contract for services covered by this RFP. Following review with the District's Legal Department, the District has determined that the records provided with this Addendum are subject to disclosure. Any information exempt from disclosure under applicable law is excluded or redacted, as appropriate.

The records listed below are being made available to all prospective proposers through this Addendum. They are provided for historical reference only. Their inclusion does not incorporate the incumbent contract terms, scope, or pricing into this RFP or any resulting contract.

Records provided: Service contract and most recent renewal and pricing

Use of Historical Pricing Information

Historical pricing reflects the terms and circumstances of the incumbent contract. Differences in scope, service levels, staffing, quantities, contract duration, or market conditions may limit direct comparisons with pricing for this RFP. Proposers must base their proposals on the requirements of this RFP, as amended, rather than assume that the historical contract reflects the current requirements.

Historical pricing does not establish:

- A target price, preferred price, or District budget for this solicitation;
- A pricing ceiling or floor, or the District's estimate of current market value; or
- The price necessary to receive an award.

Each proposer is responsible for developing independent, competitive, and sustainable pricing based on its proposed approach, staffing, costs, efficiencies, and understanding of the RFP requirements. Matching or reducing the incumbent's pricing does not, by itself, demonstrate best value or assure an award.

Amendment to Best Value Evaluation

Sections 4.1 and 4.2 and the Evaluation Criteria provision in Exhibit A are amended to establish the relative importance stated below. This amendment applies equally to all proposals.

The non-price evaluation factors identified in the RFP, considered collectively, will receive substantially greater importance than price. Price remains an evaluation factor. The District is not obligated to award to the lowest-cost proposer and may select a higher-priced proposal when the documented benefits under the non-price factors justify the additional cost.

This emphasis reflects the District's need for reliable custodial services that protect health and safety, maintain building readiness, meet the required APPA Level 2 standard, and deliver sustainable performance throughout the contract term.

The District will consider the non-price factors already identified in Sections 4.1 and 4.2 and Exhibit A, including past performance, financial stability, technical capability, operational capability and integration, industry leadership, innovative practices, risk mitigation, workforce stability, additional adjacent service capabilities, and long-term performance outcomes.

Proposers should substantiate their proposed capabilities through the response requirements in Section 5.0 and Exhibit A, including their staffing and work loading plan, quality assurance program, technology and integration capabilities, safety and compliance approach, and transition and implementation plan. General assurances of quality or a price below the incumbent's price do not, by themselves, establish best value.

Price will be evaluated for the required scope using Exhibit D and in relation to the proposed service approach, staffing, and ability to achieve the required performance standards. The incumbent's historical pricing is not the District's target price, a proposal scoring baseline, or an automatic basis for an award.

No numerical proposal evaluation weights are established by this Addendum. The District will apply the stated relative importance consistently and document the comparative merits and price tradeoffs supporting its award decision. Except for the relative importance expressly established here, the existing evaluation factors and proposal response requirements remain unchanged.

Equal Access and Questions

Issuing these records through BidNet gives all prospective proposers access to the same disclosed information. The submission of a CORA request is not an evaluation factor and will not affect a proposer's eligibility for award.

Submit solicitation questions through BidNet in accordance with Section 2.8 and the published inquiry deadline. Any clarification that modifies the solicitation will be issued through a written addendum on BidNet. Section 4.4 concerns proposals received under this solicitation; it does not

establish a blanket restriction on access to incumbent contract records or supersede applicable CORA requirements. CORA requests will be handled separately under applicable law and District procedures.

Continuing RFP Requirements

Except for the evaluation amendment expressly stated above, all RFP requirements, terms, conditions, and deadlines remain unchanged. By signing the cover letter of their proposal as required by Section 2.8, you are also acknowledging this Addendum.

A Company Built to Serve

CCS SERVICES AGREEMENT

THIS CCS SERVICES AGREEMENT (this "Agreement") is made and entered into as of May 12, 2021, by and between CCS, LLC ("CCS" or "Contractor") and Cherry Creek School District No.5 ("Client").

In consideration of the mutual covenants, promises and stipulations herein, each of CCS and Client hereby mutually agree as follows:

1. **SERVICES, PERFORMANCE AND TERM OF AGREEMENT**

(a) CCS agrees to perform janitorial services (the "Services") for Client in accordance with the specifications set forth on Exhibit B hereto (as such specifications may be amended from time to time, the "Specifications"). The Services shall be performed at each location listed on Exhibit A (the "Work Site"). This Agreement shall be effective on June 1, 2021 (the "Commencement Date") and shall continue until May 31, 2022 (the "initial term"), unless this Agreement is sooner terminated. This Agreement has the option to renew at the end of the initial term and shall thereafter continue for successive four (4) year annual periods, unless terminated by either party at any time with or without cause upon thirty (30) days' written notice, pursuant to section 16, below.

(b) The additional one (1) year re-negotiated renewals will be completed in April 2022. If an increase is determined to be appropriate by both parties, such percentage increase shall not exceed the percentage increase that CCSD employees will receive the following year.

(c) All Services shall be performed by CCS in a good and workmanlike manner and substantially in accordance with the Specifications. CCS's supervisory personnel shall also provide regular and systematic inspections of the Work Site to ensure the Services are being performed in accordance with the Specifications and the other terms of this Agreement. If material deficiencies are found, CCS agrees to remedy any such deficiencies within three (3) business days after discovery, or as otherwise stated in Section 18, Unacceptable Service, below.. CCS shall exercise reasonable due diligence and shall comply with any Work Site/Client use policies, regulations and guidelines as provided by Client, in assuring that only CCS personnel shall have access to the Work Site in connection with the provision of the Services.

(d) CCS is responsible for reporting and making whole any damage(s) to any service location caused by CCS during the course of their work.

(e) CCS is responsible for reporting any missing keys and to adhere to Client key control policies. CCS will reimburse Client for lost keys and for any costs associated with missing keys and the fixing or changing of associated locks.

(f) All tools, equipment and non-consumable materials required to perform the Services in accordance with the Specifications, as determined in the sole discretion of CCS, shall be furnished and paid for by CCS.

(g) Should events beyond the reasonable control of Client and CCS, including but not limited to, acts of God, war, acts of any government or agency thereof, fire, explosions, epidemics, pandemics, including COVID-19, plagues, outbreaks of infectious disease or any other public health crisis, including quarantine, stay at home orders or the like, or other related Client mandated restrictions, or any other cause reasonably beyond the parties' control (collectively referred to as "force majeure event"), making the terms impracticable, impracticable to perform, illegal or impossible to fully perform under this Agreement as the Parties originally contracted, the affected party may, without liability and upon written notification, terminate this Agreement or require that this Agreement be paused until the Services may recommence after the force majeure event no longer makes the terms of this Agreement impracticable, impracticable to perform, illegal or impossible.

Definition of "without liability": "Without liability" means that there will be no liquidated damages, attrition fees, cancellation fees, rental charges, rental deposits, service charges, or any direct, consequential, compensatory, special incidental damages or any other damages or amounts of any nature whatsoever. If the Services are paused due to a force majeure event, Client will not be responsible for any payment to CCS while the Services are not being provided.

2. **PAYMENT, SCHEDULE AND TERMS**

(a) Services shall be provided in accordance with Exhibit B, provided however that CCS may, if commercially necessary, amend the schedule upon reasonable advance notice.

(b) In consideration of the performance of the Services, Client shall pay to CCS a monthly fee (the "Monthly Fee") as indicated in the pricing page attached as Exhibit A, per the agreed upon Specifications. Payment terms are net 30. CCS shall submit invoices for payment to Client who shall make payments no later than thirty (30) days following the end of the period covered by the invoice. Payments will be made no more frequently than once in a 30-day period. Client will not pay late or interest charges. Services that are outside the scope of the Specifications, and requested by Client either in writing or verbally, shall be invoiced by CCS promptly upon performance and must be paid within thirty (30) days of invoicing.

(c) In the event that CCS experiences any increase in the costs associated with performing the Services, whether or not anticipated, caused directly or indirectly as a result of: (1) Federal, state or local taxes, levies, assessments, or required withholdings imposed or assessed on amounts payable to and/or by CCS hereunder or by or in respect of CCS to its personnel; (2) Federal, state or local minimum wage rates, mandated paid time off and/or sick leave, changes in overtime wage regulations, uniform maintenance expenses or other required employee allowances, licensing fees, or wage, medical, welfare and other benefit costs under collective bargaining agreements; (3) costs related to insurance and/or workers' compensation; (4) costs related to medical and/or welfare benefits and other requirements, including without limitation costs incurred by CCS pursuant to applicable federal, state and/or local law, including, without limitation "Healthcare Reform Legislation Costs" (as defined below) or (5) other changes in applicable laws, regulations, ordinances, permitting requirements or similar governmental or quasi-governmental actions that impact the operation of CCS's business, the then current Monthly Fee and the billing rate for any other Services being provided to Client (collectively, "Billing Rates") may be increased, in an amount necessary to reflect such increases in costs, as negotiated by the Parties. CCS will provide Client with no less than thirty (30) days' written notice of any proposed changes in Billing Rates pursuant to this provision. "Healthcare Reform Legislation Costs" shall mean the costs and/or assessments incurred by CCS in respect of the employee medical and/or welfare benefits and other requirements under the Patient Protection and Affordable Care Act of 2010 and the related statutes

and regulations, as each may be amended from time to time. The increase request shall be pursuant to Section 1.b.

3. **RELATIONSHIP BETWEEN THE PARTIES**

(a) CCS shall remain at all times an independent contractor with Client and no agency relationship of any kind shall exist or be deemed to exist between the Parties. All employees furnished by CCS to perform the Services will be employees or subcontractors of CCS and will at all times be subject to the direct supervision and control of CCS.

(b) CCS maintains responsibility for (1) paying the salaries, taxes (including, but not limited to: Federal social security taxes; Federal and state unemployment taxes; worker's compensation; premiums and license fees), all benefits and all other expenses relating to each such employee of CCS, and (2) procuring necessary insurance for its employees, including, but not limited to, workers' compensation insurance within statutory limits of coverage, employer's liability insurance, comprehensive general and automobile liability insurance coverage.

4. **INSURANCE**

(a) CCS and all subcontractors of CCS, if any, agree to obtain and maintain during the performance of the Services and until acceptance by the Client the following described insurance naming the Client as additional insured on the insurance. Such insurance shall be primary to any insurance carried by Client and shall be carried with insurance companies satisfactory to Client. CCS will provide Client certificates of insurance prior to the start of the work evidencing the required insurance. The required insurance coverage is as follows:

i. Workers Compensation with statutory limits, as required under the laws of the State of Colorado and Employer's Liability of not less than $500,000.

ii. Commercial General Liability Insurance including premises/operations, personal injury, products/completed operations and contractual liability coverage's with limits of not less than $1,000,000 per occurrence, $2,000,000 aggregate.

iii. Commercial Automobile Liability covering all automobiles, owned, hired and non-owned vehicles used in the performance of this Agreement with limits of no less than $1,000,000 per occurrence, $2,000,000 aggregate.

5. **INDEMNITY**

(a) To the extent allowed by law and not prohibited by Article XI, Section 1 of the Colorado constitution and statutes (C.R.S. § 24-10-101 *et. seq.*, as amended), CCS and Client mutually agree to indemnify and hold each other harmless from and against all damage, liability or cost (including reasonable attorney fees and cost of defense) arising from their own negligent acts or misconduct, and their errors or omissions in their performance of their obligations under this Agreement, to the extent that each party is responsible for such damages and losses on a modified comparative basis of fault.

(b) Notwithstanding the foregoing, except for tort damages in connection with a personal injury claim, in no event shall either party be liable to the other party for any consequential,

indirect or unforeseeable damages including, without limitation, loss of use or loss of anticipated profits, regardless of the basis of legal liability therefor.

6. **LIMITATION OF LIABILITY**

To the fullest extent permitted by applicable law, the total liability, in the aggregate, of CCS, CCS's officers, directors, partners, employees, agents, and subconsultants, to Client, and anyone claiming by, through, or under Client for any claims, losses, costs, or damages whatsoever arising out of, resulting from or in any way related to this Agreement or the Services from any cause or causes, including but not limited to negligence, professional errors and omissions, strict liability, breach of contract, or breach of warranty, shall not exceed the CCS Policy limits as presented on the provided COI. This limitation of liability provision does not include willful and wanton or grossly negligent conduct alleged to have been committed by CCS, CCS's officers, directors, partners, employees, agents and/or subcontractors.

7. **ASSIGNMENTS**

This Agreement shall inure to the benefit of and be binding upon the heirs, personal representatives, assignees and successors of both Parties hereto. It is agreed by the Parties that there will be no assignment or transfer of this Agreement, nor of any interest in this Agreement, without the written consent of the other parties.

8. **LEGALITY OF CONTRACT**

If any part, term or provision of this Agreement is held by any Court of competent jurisdiction to be illegal or to be in conflict with any law of the State of Colorado, the validity of the remaining portions and provisions shall not be affected, and the rights and obligations of the Parties shall be construed and enforced as if the Agreement did not contain a particular part, term or provision held to be invalid.

9. **LEGAL ACTION**

(a) All claims, disputes, and controversies arising out of or in relation to the performance, interpretation, application, or enforcement of this Agreement, including but not limited to any alleged breach thereof, shall be referred to mediation before, and as a condition precedent to, the initiation of any adjudicative action or proceeding

(b) Any action or lawsuit in equity of judicial proceeding for the enforcement of this Agreement or any provision thereof shall be instituted only in the courts of Arapahoe County, Colorado, or in the United States District Court for the District of Colorado.. This Agreement shall be governed by the laws of the State of Colorado, both as to interpretation and performance.

10. **GOVERNMENTAL IMMUNITY**

No term or condition of this Agreement shall be construed or interpreted as a waiver, express or implied, of any of the immunities, rights, benefits and protections, or other provisions of the Colorado Governmental Immunity Act, C.R.S. § 24-10-101 *et seq.*

11. **PUBLIC CONTRACTS FOR SERVICES (C.R.S. 8 – 17.5 – 101 *et seq)***

CCS agrees to comply with Colorado Revised Statutes Section 8-17.5-101 et seq. regarding Worker(s) Without Authorization and Public Contracts for Services, and to sign the appropriate Certification Statement which is attached and incorporated by reference herein.

12. **PERSONNEL PRE-EMPLOYMENT SCREENINGS**

CCS assures that all individuals providing services pursuant to this Agreement shall complete all pre-employment screening requirements mandated by Client including criminal background checks and fingerprinting. CCS shall provide evidence of these pre-employment screening requirements to Client upon request. For the duration of this Agreement term, including any renewal periods, CCS shall not employ any persons convicted of any felony or misdemeanor crime of unlawful behavior involving children.

13. **EMPLOYEES**

Upon written request by Client, CCS will remove from service any employee assigned to Client's premises who has engaged in improper conduct, including without limitation, a breach of Client policies or failure to perform the duties herein, provided such request is in accordance with applicable laws. CCS shall supervise its employees through CCS's designated personnel.

14. **REPRESENTATIONS AND MODIFICATIONS**

This Agreement contains the entire agreement made between the Parties hereto, and no statement, promises or inducements made by either party or an agent of either party that is not contained in this Agreement, shall be valid or binding. This Agreement may not be enlarged, modified or altered except in writing and signed by the Parties and endorsed hereon, except as specifically provided herein.

15. **NOTICES AND PLACE OF PAYMENT**

In order for any demand, consent, approval or other communication to be effective under the terms of this Agreement, notice must be provided under the terms of this Section. All Notices must be in writing. Notices may be (a) delivered by hand, (b) sent by certified or registered mail, postage prepaid, return receipt requested ("Mailed Notices"), (c) sent by electronic mail or (d) sent by reputable overnight courier service, delivery charges prepaid. Notices shall be addressed as set forth below:

Addresses for notice:

CCS

ATTN: Stephen Larson, EVP

Phone: (720) 205-5953

Email: slarson@ccsbts.com

CCSD Information

ATTN: Cherry Creek Purchasing Department
4350 South Pitkin
Aurora, CO 80015
Phone: 720-886-5800
Email: purchasingoffice@cherrycreekschools.org

Notices delivered by hand or by overnight courier shall be deemed given when actually received or when refused by their intended recipient. Mailed Notices shall be deemed given on the date of the first attempted delivery (whether or not actually received). In the case of electronic mail transmission, notice shall be deemed to have been given and received if sent by legible electronic mail before 5:00 pm in the time zone for which the Work Site is located. Any party to this Agreement may change its address for Notice by giving at least fifteen (15) Business Days' prior Notice of such change to the other parties.

16. **TERMINATION**

This Agreement may be terminated by either party at any time with or without cause upon thirty (30) days' written notice. The termination of this Agreement by either party made pursuant to this Section 16 shall not relieve Client of the obligation to pay for all Services (including any accrued interest) performed by CCS prior to effective date of such termination.

17. **PRICING & SERVICES**

The Billing Rates on the attached Exhibit A are based upon the Specifications agreed to by the Parties. Should the Parties agree to any changes to these Specifications, the Parties shall negotiate the new Billing Rates accordingly. CCS will provide Client with no less than thirty (30) days' written notice of any proposed changes in Billing Rates pursuant to this provision. Should Client request any additional one-time tasks, such Services shall be provided at CCS's current Billing Rate therefor, which will be provided to Client in writing upon request. CCS shall not provide any Services not expressly contemplated by this Agreement without Client's advance approval. Client agrees to pay for all Services as set forth in Section 2 above. If Client fails to pay any amount due and owing under this Agreement when due, Client agrees to pay any and all costs incurred by CCS as a result of non-payment or to obtain payment, including the fees and costs of any third parties employed to seek collection, attorneys' fees and costs of litigation.

18. **UNACCEPTABLE SERVICE**

If Client, upon routine inspection, determines that any service locations have not been serviced according to the Specifications, a notice outlining the deficiencies will be provided via the Notice provisions in Section 14, above. Payment will not be made for any services that have been outlined as deficient in this notice. The notice of deficiencies will specify the date when the deficient work must be satisfactorily completed. The date of completion must be less than one (1) day from the date the notice is issued. Failure to complete the work to the satisfaction of Client by the date specified will result in no payments being made to CCS for the deficient work. Prior to re-submitting a request for payment, CCS must request a re-inspection. A re-inspection request should be completed in writing to Client pursuant to Section 14, above. If the work is deemed satisfactory upon re-inspection, Client will accept a request for payment, minus a one hundred-dollar ($100) charge for re-inspection. Any time an additional

inspection is required as a result of inadequate performance, the one hundred-dollar ($100) re-inspection charge will be assessed for each inspection completed by Client until the specified work is completed.

19. **ENTIRE AGREEMENT**

This Agreement embodies the entire agreement and understanding of the Parties and there are no further or prior agreements or understandings, written or oral, in effect between the Parties relating to the subject matter hereof. Furthermore, this Agreement shall not be construed more strictly against one party than against the other merely by virtue of the fact that it may have been prepared by counsel for one of the parties, it being recognized that both CCS and Client have had the opportunity to negotiate this Agreement.

20. **COUNTERPARTS; ELECTRONIC SIGNATURE.**

This Agreement may be executed in any number of counterparts and by different parties hereto in separate counterparts, each of which when so executed shall be deemed to be an original and all of which taken together shall constitute one and the same agreement. A facsimile copy (by scanned PDF via e-mail transmission) of the signatures of the persons executing this Agreement on behalf of the Parties hereto, respectively, shall be effective as an original signature and legally binding and effective as an executed counterpart hereof, and the Parties to this Agreement waive any rights they may have to object to such treatment.

SIGNATURE PAGE FOLLOWS

The undersigned represents that he/she has the authority to execute this Agreement on behalf of Client.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their duty as authorized representatives as of the day and year first written above.

CCS, LLC

By: _____

Name: Stephen S. Larson

Title: EVP

Date: 5/14/21

Cherry Creek School District No.5

By: Karen Fisher

Name: Karen Fisher

Title: President, Board of Education

Date: 5/21/2021

Exhibit B
CLEANING SPECIFICATIONS

last modified 4.30.21

JANITORIAL SERVICES:

A. Daily Services – Five (5) days per week
   1. Vacuum all carpeted areas. Remove gum and marks on floor.
   2. Sweep all non-carpeted floor areas. Remove gum and marks on floor.
   3. Wet mop wet areas.
   4. Empty all waste baskets, install liner, and remove trash to the appropriate trash dumpster. Clean receptacles as needed.
   5. Empty all recycle containers, install liners, and remove recycle to the appropriate recycle dumpster. Clean receptacles as needed.
   6. Clean, disinfect, and polish drinking fountains.
   7. Secure all units upon completion of workday. High schools to remain open.
   8. Clean sinks and counters in wet areas, refill dispensers.
   9. Spot clean doors, door windows, door frames, and counters.
   10. Erase whiteboards and blackboards.
   11. Report and remove all vandalism on walls, furniture, partitions, etc.

B. High-Touch Service – Once a Week
   1. Refer to high-touch map for each building and perform tasks weekly.
   2. Dust ledges, window sills, furniture, counters, etc.
   3. Clean student desk tops with disinfectant cleaner.
   4. Spot clean wall switch areas.
   5. Wipe down teachers' vinyl or plastic furniture.
   6. Clean interior glass, as needed.

C. Monthly Service
   1. Perform high dusting (5 feet to 8 feet), i.e. door sashes, tops of partitions.
   2. Remove fingerprints from woodwork, walls, and partitions.
   3. Dust pictures and accessories.
   4. Clean and polish teachers' wooden furniture.

D. Semi-Annual Service
   1. Extract carpets in common spaces and high traffic areas twice a year (around Winter Break and during Summer Break).
   2. Wash building exterior windows and skylights, inside and outside, twice a year.

E. Annual Service
   1. Clean all ceiling lights and vents.
   2. Clean walls, partitions, doors, frames, windows, ledges, and blinds.
   3. Dust all wall accessories (AV screens, maps, pictures, etc.).
   4. Clean all sinks, counters, cupboards, cabinets.
   5. Clean furniture (remove gum, writing, etc.), top and bottom.
   6. Extract all carpeted areas, moving furniture.
   7. Scrub non-carpeted floors and wax all required areas.
   8. Clean all baseboards.
   9. Clean floor drain covers, if present.

ADMINISTRATIVE OFFICE AREA

A. Daily Service – five (5) days per week
   1. Sweep with chemically treated dust-mop, or vacuum carpeted areas.
   2. Mop composition floors; spot clean carpeting, as needed.
   3. Dust all furniture.
   4. Dust office accessories.
   5. Empty all waste/ recycle containers - wash as necessary; replace liners, as needed.
   6. Spot clean doors door frames, and around wall switches.
   7. Clean all counter and sink areas including dispensers.
   8. Check and fill dispensers, as needed.
   9. Vacuum fabric upholstery on all furniture, as needed.

B. Weekly Service
   1. Dust ledges and window sills.
   2. Perform low dusting.
   3. Remove fingerprints from wood work, walls, and partitions.

C. Monthly Service
   1. Perform high dusting (5 feet to 8 feet).
   2. Clean and polish wooden furniture.

D. Quarterly Service
   1. Clean and polish metal chairs, desks, and office equipment.

INSTRUCTIONAL AREA (CLASSROOMS, LIBRARY, ETC.)

A. Daily Service – Five (5) days per week
   1. Empty all waste/ recycle containers - wash as necessary; replace liners, as needed.
   2. Sweep floors with chemically-treated dust mop; vacuum carpeted areas.
   3. Mop composition floors, spot clean carpeting, remove all gum.
   4. Clean all counter and sink areas including dispensers.
   5. Check and fill dispensers, as needed (paper soap).
   6. Clean door windows.

B. Weekly Service
   1. Perform all low dusting.
   2. Wash all desk tops, removing all pencil, crayon, glue, paste, etc.
   3. Spot clean doors, door frames, and around wall switches.
   4. Remove fingerprints from woodwork, walls, and partitions.

C. Monthly Service
   1. Perform high dusting (5 feet to 8 feet).
   2. Clean and polish wooden furniture.

ACTIVITIES AREA (GYM)

A. Daily Service – five (5) days per week
   1. Sweep floors with chemically-treated dust mop.
   2. Vacuum carpeted areas; spot clean carpeting where needed, remove all gum.

2. Clean composition floors using walk-behind scrubber.
3. Clean, disinfect, and polish drinking fountains.
4. Empty all waste/ recycle containers; wash as necessary; replace liners, as needed.

B. Weekly Service
1. Perform all high (5 feet to 8 feet) and low dusting.
2. Spot clean doors, door frames, and around wall switches.
3. Remove fingerprints from around woodwork, walls, and doors.

LOCKER ROOMS

A. Daily
1. Empty all trash/ recycle containers, sanitary receptacles, replace liners.
2. Wash all receptacles and trash cans, as needed.
3. Disinfect and polish drinking fountains and mirrors.
4. Fill all dispensers, clean as needed.
5. Mop floors with disinfectant and remove marks.
6. Gum removal from all surfaces.
7. Clean and deodorize floor drains, as needed.
8. Clean and disinfect wash basins, entire toilet, urinal surfaces inside and out.
9. Remove foreign substances, graffiti, and marks from walls.
10. Disinfect partitions and walls around toilets, urinals, wash walls around wash basins, as needed.
11. Disinfect benches.
12. Clean shower curtains.

B. Weekly
1. Dusting.
2. Clean outside of all lockers, and inside of empty/available lockers.

C. Breaks and Summer
1. Floors scrubbed with disinfectant.
2. Air vents cleaned.

HALLWAY LOCKERS

A. Daily
1. Outside of lockers cleaned; reporting graffiti and other marks, removing without damage to finish.

B. Weekly
1. Lockers dusted on top.

C. Annually
1. Lockers to be cleaned on the inside.

CLEANING SPECIFICATIONS FOR CLINICS

A. Bathrooms
1. Disinfect toilets inside and out daily.
2. Disinfect sinks, counters, and wash basins daily.

3. Disinfect all metal surfaces and fixtures daily.
4. Disinfect all wall surfaces around toilets and sinks daily; clean other wall surfaces, as needed.
5. Disinfect all dispensers daily.
6. Sweep and mop floors with disinfectant daily.
7. Clean all mirrors daily.
8. Empty all trash containers and replace liners daily.
9. Replace paper products, as needed.
10. Replenish soap, both bar and lotion, as needed.
11. Dust cabinets weekly.

B. Sick Bays
1. Sweep and mop floors with disinfectant daily.
2. Clean mirrors daily.
3. Wipe down couches with disinfectant daily.
4. Clean all wall surfaces around couches daily; clean other wall surfaces, as needed.
5. Empty all trash/ recycle containers and replace liners daily.
6. Disinfect furniture, including cots, twice weekly.

C. Nurse's Office and Waiting Room
1. Sweep and mop floors with disinfectant daily.
2. Empty all trash/ recycle containers and replace liners daily.
3. Clean any mirrors daily.
4. Clean glass surfaces, if present, on desk daily.
5. Dust all furniture twice weekly.

CORRIDORS

A. Daily Service – Five (5) days per week
1. Sweep and map all hard surface floors.
2. Vacuum carpet, spot clean carpets; remove gum as needed.
3. Spot clean woodwork, walls, and partitions (graffiti, writing, etc.).
4. Clean all entryway windows.
5. Empty trash/ recycle containers; replace liners as needed; sweep/mop containers.

B. Weekly Service
1. Perform low and high dusting (5 feet to 8 feet).
2. Remove fingerprints from woodwork, walls, and partitions.
3. Vacuum or mop under entryway matting.
6. Wash trash containers.

RESTROOM SERVICE

A. Daily Service – Five (5) days per week
1. Empty all waste paper receptacles – wash as necessary; replace liners as needed.
2. Polish all metal and mirrors.
3. Clean dispensers.
4. Clean and disinfect wash basins.
5. Clean and disinfect toilets urinals – inside and outside surfaces, seat.
6. Clean toilet urinal partitions – surfaces behind and around.
7. Clean all walls.

8. Sweep floors; mop with a germicidal solution (hot water *only*).
9. Refill soap, towel tissue dispensers.

B. Weekly Service
1. Perform high dusting (5 feet to 8 feet).
2. Wash down entire toilet compartment partitions.

C. Quarterly Service
1. Scrub floors

CUSTODIAL CLOSETS

A. As needed
1. Clean sink.
2. Sweep and mop floors.
3. Clean walls, doors, and counters.

FLOOR FINISH SERVICES

1. Spot refinish traffic areas – all composition floors, monthly.
2. Polish/buff cafeteria floors, quarterly.
3. Clean and refinish all composition floors, bi-annually.

WINDOW CLEANING SERVICE

1. Wash all exterior windows, inside and out, bi-annually.

CARPET CLEANING SERVICE

1. Clean all carpet, annually, with truck-mounted extraction.
2. Pre-treat all spots with a rotary scrubber prior to cleaning.

SPECIAL AFTER SCHOOL ACTIVITY FUNCTIONS – OPENING & LOCKING DOORS

1. Secure elementary and middle school buildings upon departure, daily.
2. Security for special events, according to school function calendar.

ACTIVITIES – MONDAY THRU SATURDAY

1. Set-up and/or take-down of school and non-school related activities.
2. Clean up prior to activity.
3. Clean up after activity.

WEEKEND COVERAGE

1. Open and close building;
2. Set-up and take-down;
3. Clean up;
4. Service building.

SNOW REMOVAL AND ICE

1. Shovel and apply ice melt to a five-foot wide path to entrance being used for after school activities.

SITE CONSTRUCTION INVOLVEMENT

1. Moving of furniture equipment prior to construction;
2. Placement of furniture and equipment;
3. Clean-up of construction prior to opening a facility.

END OF DOCUMENT

AMENDMENT TO
SERVICE AGREEMENT

This AMENDMENT TO SERVICE AGREEMENT ("Amendment"), entered into as of March 25, 2026, is by and between and between Cherry Creek School District ("Client"), and CCS Facility Services – Colorado Inc., dba CCS Facility Services ("Contractor"), with reference to the facts set forth in the Recitals below.

Recitals:

A. Client and Contractor entered into that certain Service Agreement dated May 21, 2021 (the "Agreement"), pursuant to which Contractor currently provides District wide cleaning services ("Services") to Client for those certain premises as contracted at that time.

B. The Agreement is hereby incorporated into this Amendment by this reference. Capitalized terms used in this Amendment without definition have the meanings given to them in the Agreement.

C. Client and Contractor now desire to amend the Agreement reflecting the revised Exhibit A – 2026-2027 Monthly Pricing, as hereinafter set forth.

Agreement:

NOW, THEREFORE, in consideration of the above Recitals and the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Client and Contractor agree as follows:

1. Exhibit A. Client and Contractor agree that the "Exhibit A – 2026-2027 Monthly Pricing" attached hereto shall prescribe the monthly costs for the 2026-2027 contract year (July 2026 thru June 2027).

2. No Other Modifications. Except as modified in this Amendment, all other terms and conditions of the Service Agreement shall remain unchanged and in full force and effect. To the extent of a conflict between the terms of the Service Agreement and the terms of this Amendment, the terms of this Amendment shall prevail. A breach by Contractor of any of the terms of this Amendment shall constitute a material breach by Contractor of the Service Agreement as to which Owner shall have all rights and remedies set forth in the Service Agreement. This Amendment may be executed in multiple counterparts, each of which shall be deemed to be an original, but all of which, together, shall constitute one and the same instrument.

[NO FURTHER TEXT ON THIS PAGE; SIGNATURES TO FOLLOW]

IN WITNESS WHEREOF, the parties have executed this Amendment as of the date set forth above.

OWNER:

Client name

By: _____
Name: Anne Egan
President, Board of Education
Cherry Creek School District No. 5

CONTRACTOR:

CCS Facility Services

By: _____
Name: Stephen S. Larson
Its: Executive Director

EXHIBIT A

Exhibit A – 2026-2027 Monthly Pricing

School	2026-2027 Pricing
Altitude Elementary	$ 7,187.82
Antelope Ridge Elementary	$ 6,094.37
Arrowhead Elementary	$ 5,965.55
Aspen Crossing Elementary	$ 6,538.88
Belleview Elementary	$ 5,814.65
Black Forest Elementary	$ 7,175.92
Buffalo Trail Elementary	$ 7,033.08
Campus MS	$ 14,767.22
Canyon Creek Elementary	$ 6,292.54
Career & Innovation Academy	$ 11,500.33
Challenge School	$ 5,873.43
Cherokee Trail HS	$ 31,423.56
Cherry Creek East Building	$ 7,430.14
Cherry Creek Fine Arts	$ 4,604.55
Cherry Creek Information Center (IC)	$ 6,739.35
Cherry Creek West Building	$ 19,364.28
Cherry Hills Village Elementary	$ 5,976.97
Cimarron Elementary	$ 5,680.21
Cottonwood Creek Elementary	$ 5,962.26
Coyote Hills Elementary	$ 6,935.23
Creekside Elementary	$ 6,297.63
Dakota Valley Elementary	$ 6,530.65
Dry Creek Elementary	$ 5,935.43
Eaglecrest HS	$ 27,870.11
Eastridge Elementary	$ 8,639.19
Endeavor Academy	$ 4,707.74
Falcon Creek MS	$ 11,663.18
Fox Hollow Elementary	$ 7,119.86
Fox Ridge MS	$ 15,035.11
Fremont Building/Options Program	$ 8,650.59
Grandview HS	$ 28,833.45
Greenwood Elementary	$ 5,297.15
Heritage Elementary	$ 4,270.26
High Plains Elementary	$ 6,123.09
Highline Elementary	$ 6,253.74
Holly Hills Elementary	$ 4,449.71
Holly Ridge Primary Elementary	$ 4,826.29
Homestead Elementary	$ 5,382.31
Horizon MS	$ 14,040.57
Independence Elementary	$ 5,853.21
Indian Ridge Elementary	$ 5,968.41
Infinity MS	$ 12,233.27
Institute Science & Teck (IST)	$ 6,254.29
Instructional Support Facility	$ 5,850.94
Joliet Learning Center	$ 2,282.73
Laredo MS	$ 14,309.59

Legacy Stadium	$	1,124.08
Liberty MS	$	12,466.07
Maintenance Central/Grounds	$	1,251.96
Maintenance East	$	1,872.40
Maintenance West	$	2,061.82
Meadow Point Elementary	$	5,853.56
Mission Viejo Elementary	$	8,170.54
Mountain Vista Elementary	$	7,175.92
Overland HS	$	26,159.40
Peakview Elementary	$	5,733.12
Pine Ridge Elementary	$	7,298.48
Polton Elementary	$	7,711.75
Ponderosa Elementary	$	6,417.11
Prairie MS	$	15,372.49
Red Hawk Elementary	$	7,710.04
Rolling Hills Elementary	$	6,094.30
Sagebrush Elementary	$	5,965.55
Sky Vista MS	$	13,513.00
Smoky Hill HS	$	29,509.83
Student Achievement Resource Center	$	2,748.24
Student Nutrition Center	$	3,009.20
Stutler Bowl	$	1,258.23
Summit Elementary	$	5,664.71
Sunrise Elementary	$	7,588.40
The Cottage Preschool	$	1,326.85
The Journey Preschool	$	1,587.05
The Outback Preschool	$	1,108.55
The Ranch I-Team	$	1,156.46
Thunder Ridge MS	$	14,568.18
Timberline Elementary	$	6,249.04
Trails West Elementary	$	5,978.66
Transportation Central	$	2,561.83
Transportation East	$	2,800.20
Transportation West	$	3,076.19
Traverse Academy	$	3,887.77
Village East Elementary	$	8,107.69
Walnut Hills Elementary	$	5,760.29
Warehouse/Printing/Purchasing	$	3,288.54
West MS	$	13,527.90
Willow Creek Elementary	$	5,617.38
Woodland Elementary	$	8,342.90
Campus MS Day Porter Services	$	3,525.23
Career & Innovation Academy Day Porter Services	$	3,788.68
Cherokee Trail HS Day Porter Services	$	7,050.47
Cherry Creek HS Day Porter Services	$	7,050.47
Eaglecrest HS Day Porter Services	$	7,050.47
Endeavor Academy Day Porter Services	$	4,064.73
Falcon Creek MS Day Porter Services	$	3,525.23
Fox Ridge MS Day Porter Services	$	3,525.23
Grandview HS Day Porter Services	$	7,050.47
Horizon MS Day Porter Services	$	3,525.23

Infinity MS Day Porter Services	$	3,525.23
Instructional Support Facility Day Porter Services	$	3,525.23
Laredo MS Day Porter Services	$	3,525.23
Liberty MS Day Porter Services	$	3,525.23
Overland HS Day Porter Services	$	7,050.47
Prairie MS Day Porter Services	$	3,525.23
Sky Vista MS Day Porter Services	$	3,525.23
Smoky Hill HS Day Porter Services	$	7,050.47
Thunder Ridge MS Day Porter Services	$	3,525.23
Village East Elementary Day Porter Services	$	3,525.23
West MS Day Porter Services	$	3,525.23
Total	**$**	**789,698.66**